



April 30, 2014 5:55PM EDT | News Release

Philippines: Protect Zamboanga's Displaced Minorities

Evacuees Barred From Returning Home, Face Arbitrary Relocation



(Zamboanga City) – The [Philippine](#) government is subjecting thousands of minority group members and other residents displaced by fighting in Zamboanga City in September 2013 to arbitrary relocation, Human Rights Watch said today. The government is prohibiting these internally displaced persons (IDPs) from returning to their homes while failing to consult them about their relocation, in accordance with Philippine [law](#) and international human rights standards.

The Zamboanga City government has already transferred hundreds of these displaced residents, who have been camping in a coastal evacuation center the past seven months, to an elementary school several kilometers away. In June, when classes start, the city plans to move them again to government-built shelters that will serve as “transitional sites.” The displaced residents have not been consulted regarding the transfers or their final resettlement site, which amounts to a forced eviction from their original homes.

“The plight of Zamboanga’s displaced reflects an unacceptable failure by the Philippine government to ensure the safety and welfare of thousands of people forced to flee the September fighting,” said Phelim Kine, deputy Asia director at Human Rights Watch. “Rather than addressing return and resettlement in accordance with international law, the government is pushing forward a relocation process that is disregarding their basic rights.”

In the Cawa-cawa evacuation camp, most of the displaced residents belong to the Badjao tribe, who derive their livelihood from the sea. Residents, local civil society leaders, and humanitarian workers told Human Rights Watch that the city government did not engage in genuine consultations with the displaced residents on its plans to relocate them. Instead, according to leaders of the displaced and aid agency representatives, city government officials met with a few of the affected residents

[English](#)[DONATE NOW](#)

An April 22, 2014 report by the United Nations High Commissioner for Refugees raised concerns about the relocation's impact on the rights of the displaced residents. While the agency supported the move to vacate Cawa-cawa because of the dangers the location posed to the displaced, it said the affected residents "did not understand or have enough information about the move prior to the relocation."

Human Rights Watch spoke to displaced people who disputed [media reports](#) that the government had consulted them and gained their consent for such transfers. Instead, media reports indicate that some displaced people are "consenting" to the transfer due to vague threats from Philippines security forces that those who resist "[will be dealt with accordingly](#)." Soldiers as well as police have been involved in carrying out the transfers.

On September 9, 2013, armed insurgents from a faction of the rebel Moro National Liberation Front (MNLF) took over five villages in Zamboanga City, taking dozens of residents hostage. Fighting in Zamboanga over the next four weeks displaced more than 100,000 people, most of them in the Muslim minority. The conflict resulted in dozens of deaths and the destruction of more than 10,000 homes. The majority of people displaced by the fighting remain in limbo. They include people staying in evacuation camps at a coastal area called Cawa-cawa and at the Joaquin Enriquez Sports Complex, which together hold more than 24,000 displaced people.

Government policies and practices are contributing to the poor health, well-being, and economic insecurity of the estimated 64,000 displaced people, particularly women and children, now living in seven evacuation camps, five "transitional sites" or shelters, and with relatives and friends. More than 100 people – mostly children and infants – have died from mostly preventable, sanitation-related illnesses since their displacement in September, according to government health officials.

Policies pursued by the Zamboanga City government, as well as provincial and central government agencies in Zamboanga, indicate a serious disregard for constitutional protections and international standards on internally displaced persons. Article 13, section 10 of the Philippine Constitution prohibits resettlement without "adequate consultation." The UN Guiding Principles on Internal Displacement also call upon governments to provide protection for displaced persons, among others, by ensuring that "the free and informed consent of those to be displaced shall be sought."

In particular, the Zamboanga City government has prohibited displaced residents from the city's Rio Hondo and Mariki villages, where most of the displaced in Cawa-cawa had lived, from returning to rebuild their homes. The city has instead declared the area of the two villages a "no build zone" as a means to, according to officials, protect the areas' mangrove forests. The city justifies this decision by citing the National Integrated Protected Areas System Act, which prohibits settlement in areas that have "unique physical and biological significance" that should be "protected against destructive human exploitation."

[English](#)[DONATE NOW](#)

under a particular obligation to protect against the displacement of indigenous peoples, minorities, peasants, pastoralists and other groups with a special dependency on and attachment to their lands.”

While the Zamboanga City government has prohibited the original residents from resettling in the Rio Hondo and Mariki villages, the city's three billion peso (US\$67 million) [Zamboanga City Roadmap to Recovery and Reconstruction plan](#), or Z3R, specifically designates the area that includes Rio Hondo, Mariki, and three other affected villages for the construction of buildings and infrastructures, including “houses on stilts” and a base for the Philippine Navy, among others. That exception to the “no build zone” suggests that the government may eventually allow residential development in those areas.

“Forbidding evacuees from returning to their areas of residence by declaring them ‘no build zones’ is effectively a forced eviction that re-victimizes an already vulnerable population,” Kine said. “The government owes Zamboanga’s displaced residents a clear and open process in which they can meaningfully participate in their return or resettlement.”

Consultation on Return or Resettlement

The UN [Guiding Principles](#) on Internal Displacement provide that governments should establish conditions and provide the means to allow displaced persons “to return voluntarily, in safety and with dignity, to their homes or places of habitual residence,” or “to resettle voluntarily elsewhere in the country.” The guidelines call for “special efforts” to ensure the full participation of displaced persons in the planning and management of their return or resettlement.

The Zamboanga City government held consultations with Muslim community groups on post-conflict reconstruction and relocation plans in October, in the immediate aftermath of the fighting. However, numerous humanitarian organizations and government agencies told Human Rights Watch that the displaced residents themselves were excluded from the planning and decision-making process for the government’s post-conflict interventions. The displaced “were not consulted and they were only informed of certain decisions after the fact,” an official from a government agency told Human Rights Watch. “The [involvement] is, at best, token involvement.” However, Human Rights Watch learned that the city government did consult with representatives of at least two communities chosen as possible resettlement sites. Those resettlements were blocked due to opposition from their community leaders, according to city officials.

The provisions of the guidelines on return or resettlement are consistent with the rights to liberty of movement and freedom to choose one’s residence under article 12 of the International Covenant on Civil and Political Rights, to which the Philippines is a party. Customary international humanitarian law also [recognizes](#) the rights of displaced persons to return in safety to their home or places of habitual residence as soon as the reason for their displacement ceases to exist. The UN

[English](#)[DONATE NOW](#)

Right to an Adequate Standard of Living

The [Guiding Principles](#) on Internal Displacement in principle 18 provide that all internally displaced persons are entitled to an adequate standard of living. However, the Zamboanga City government has implemented regulations that seem to unnecessarily restrict the access of the people who have been displaced to an adequate living standard. In December 2013, the Zamboanga City government [ceased](#) its emergency food distribution to displaced persons, and in March 2014, suspended its food-for-work program.

The authorities' enforcement of the city's anti-street vending law has significantly affected the more than 4,000 displaced members of the Badjao tribe at the Cawa-cawa shoreline evacuation camp, who have depended on fishing and selling their fish in Zamboanga City to augment the assistance provided by the government and aid agencies.

Tuyo Atla, 40, a fisherman from Rio Hondo with a wife and six children, has fished in the evenings since relocating to an evacuation camp and sold his catch the next day. Atla and other displaced people told Human Rights Watch that the aid they get is inadequate for daily survival. In the past month, members of the City Hall Community Police Assistance Center (Compac) have arrested Atla three times for selling his fish, and each time have confiscated his catch without any compensation. "That fish, that [was worth] money [that] was meant for my family," he said. "I could have bought food with it. What would they rather have us do? Steal?"

An official of the National Department of Social Welfare and Services estimated that since September 2013, Compac personnel have arrested about 200 Badjao displaced people for selling fish in the street. In at least one case, Compac members appeared to have used excessive force during an arrest. The social welfare official told Human Rights Watch that three Compac personnel beat up Benhar Bangaadi, a Badjao from Rio Hondo village, after he accidentally splashed water on them during his arrest several weeks ago. Human Rights Watch viewed a photograph of Bangaadi after his release from Compac custody with facial injuries consistent with being beaten.

The social welfare official told Human Rights Watch that his office had appealed to the city to exempt the displaced Badjao from the anti-street vending law, given their current circumstance. "We begged City Hall to make an exemption to these Badjao since they are IDPs and they need the extra income," the official said. "But they did not listen to us."

Humanitarian agency officials said the Badjao have been the most vulnerable of the displaced in Zamboanga City, because of their indigenous cultural practices. These include an aversion to rice and items common in emergency food packs such as instant noodles and sardines.

[English](#)[DONATE NOW](#)

Cawa-cawa to an elementary school in the Mampang district of Zamboanga, several kilometers from the seashore, has also interfered with their ability to support themselves. The social welfare official told Human Rights Watch that the government ignored the Badjaos' pleas to be relocated near the seashore.

Your tax deductible gift can help stop human rights violations and save lives around the world.

\$50**\$100****\$250****\$500****\$1000****Other**[DONATE NOW](#)

Region / Country [Asia, Philippines](#)

Topic [Internally Displaced People](#)

MORE READING

October 3, 2013 | News Release

Philippines: Investigate Zamboanga Detainee Mistreatment

September 19, 2013 | News Release

Philippines: Mistreatment, Hostage-Taking in Zamboanga